

2014

M B A

1st Semester Examination

BUSINESS LEGISLATION

PAPER—MBA-105

Full Marks : 100

Time : 3 Hours

The figures in the right-hand margin indicate full marks.

Candidates are required to give their answers in their own words as far as practicable.

Illustrate the answers wherever necessary.

1. Answer any eight questions : 5×8

- (a) What is meant by Conditional offer?
- (b) Acceptance must be absolute and unqualified — Discuss.
- (c) What is breach of contract? Discuss actual breach and anticipatory breach.

(Turn Over)

- (d) Discuss Supervening impossibility.
- (e) What is the position of a Foreign Sovereign in Indian Contract Act.
- (f) Define Coercion. Discuss the consequences of a contract made by Coercion.
- (g) Define the term 'Consumer' as per Consumer Protection Act, 1986.
- (h) Write a short note on 'Articles of Association'.
- (i) What is private company as per the Companies Act 2013 ?
- (j) Discuss the redressal mechanism under the Consumer Protection Act 1986.
- (k) What are the Contents of Memorandum of Association ?
- (l) Define Prospectus and what are its contents ? 2+3

2. Answer any *four* questions :

10×4

- (a) Write about prospectus and what are to be included in the prospectus as per the Companies Act, 2013.
- (b) Write about the Memorandum of Association as per the Companies Act 2013.
- (c) Write about the Aims and Objectives of the Consumer Protection Act 1986.
- (d) "All Contracts are Agreements but all Agreements are not Contracts." Discuss with suitable examples.
- (e) What are the express and implied conditions and warranties in a Contract of Sale ?
- (f) What are the rights of Unpaid seller ?

[Internal Assessment : 20 Marks]
